

Sri. Madan Prabhakar vs Smt. Rashmi. V on 20 June, 2018

Author: Aravind Kumar

Bench: Aravind Kumar

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 20TH DAY OF JUNE, 2018

BEFORE

THE HON'BLE MR.JUSTICE ARAVIND KUMAR

WRIT PETITION No.27193 OF 2017

C/w

WRIT PETITION No.23752 OF 2017 (GM-FC)

IN W.P.No.27193/2017:

BETWEEN:

Sri. Madan Prabhakar,
S/o. Sri. H.S.Prabhakar,
Aged about 35 years,
R/at No.8, 1st Floor, 11th Cross,
Lakshmi Layout, Munne Kolala,
Marathahalli,
Bengaluru - 560 023.

...Petitioner

(By Sri. S.P. Kulkarni, Advocate)

AND:

Smt. Rashmi V.,
W/o. Sri. Madan Prabhakar,
D/o. Vijaya Kumar,
Aged about 29 years,
R/o. No.19/B, Block No.15,
SBM Colony, Srirampura,
2nd Stage,
Mysuru - 570 023.

...Respondent

(By Sri. G.S. Balagangadhar, Advocate)

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This Writ Petition is filed under Articles 226 and 227 of the Constitution of India, praying to quash the impugned order dated 14.03.2017 passed by the V Additional Principal Judge, Family Court, Bengaluru, allowing in part the application filed by the respondent for enhanced maintenance made in I.A.No.XII in M.C.No.2345/2011 filed under Section 24 of the Hindu Marriage Act, being arbitrary, erroneous and opposed to law, equity and justice vide Annexure-F and etc.

IN W.P.No.23752/2017:

BETWEEN

Smt. Rashmi V,
D/o. Vijayakumar,
Aged about 30 years,
R/at. 19/B, Block No.15,
SBM Colony, Srirampura 2nd Stage,
Mysuru - 570 023. ...Petitioner

(By Sri. G.S. Balagangadhar, Advocate)

AND

Sri. Madan Prabhakar,
S/o. Sri. H.S. Prabhakar,
Aged about 35 years,
Presently R/at Plot No.001,
Ground Floor,
BM Happy Valley Apartment,
Nallurahalli, Whitefield,
Bengaluru - 560 066.

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ALSO AT:

Sri. Madan Prabhakar,
Personal Manager (Head-HR)
Tata Consultancy Services,
SJM Towers, No.18,
Seshadri Road, Gandhinagar,
Bengaluru - 560 009. ...Respondent

(By Sri. Sreekantha K.S., Advocate)

This Writ Petition is filed under Articles 226 and 227

of the Constitution of India, praying to grant writ of certiorari or any other appropriate writ by modifying the order on I.A.No.12 passed by learned V Additional Principal Family Judge, Bengaluru, in allowing the application partly filed by the petitioner under Section 151 of CPC and Section 24 of the Hindu Marriage Act in M.C.No.2345/2011, dated 14.03.2017, vide Annexure-H and etc.,

These Writ petitions coming on for Orders this day, the Court made the following:

ORDER

These two petitions are directed against the order dated 14.03.2017 where under I.A.No.XII filed by the petitioner in W.P.No.23752/2017 who is respondent in W.P.No.27193/2017 under Section 24 of the Hindu Marriage Act, 1955, seeking enhancement of maintenance amount from Rs.20,000/- to Rs.70,000/- and Rs.20,000/- towards litigation, has been allowed in part, by directing the petitioner to pay Rs.10,000/- p.m. to the minor daughter

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instead of Rs.5,000/- p.m. as per order dated 04.07.2014, from the date of filing of the application pending disposal of the M.C.No.2345/2011. By consent of learned counsel appearing for parties, it is taken up for final disposal.

2. Parties are referred to as per their rank before trial Court.

3. Petitioner herein has filed a petition under Section 13(1)(1-a) of the Hindu Marriage Act, 1955, seeking dissolution of his marriage with respondent solemnized on 03.11.2008 on the grounds urged in M.C.No.2345/2011. Said petition has been opposed by the respondent herein by filing a detailed statement of objections and matter is being contested between the parties. During the pendency of said proceedings, respondent herein filed an application under Section 24 of the Hindu Marriage Act, seeking payment of maintenance. Learned trial Judge after considering rival contentions and after examining the records produced by both parties and after evaluating the same by order dated 04.07.2014 (Annexure - C) allowed the application in part

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and directed the petitioner herein to pay interim maintenance @ Rs.15,000/- to respondent-wife and Rs.5,000/- per month to the daughter from the date of filing of application till disposal of M.C.No.2345/2011. This arrangement was continued till respondent filed I.A.No.XII (Annexure - F) under Section 151 of CPC read with Section 24 of the Hindu Marriage Act, for enhancement of said interim maintenance. Said application was opposed to by the petitioner and learned trial Judge after considering rival contentions, by impugned order dated 14.03.2017 has enhanced the maintenance insofar as minor daughter is concerned and rejected the claim of respondent - wife. On account of rejection of application filed by respondent, she has questioned the same in W.P.No.23752/2017 and

petitioner being aggrieved by order of enhancement of interim maintenance passed by the learned trial Judge awarding Rs.10,000/- p.m. to the minor daughter has filed W.P.No.27193/2017. Hence, these two petitions are taken up together, heard and disposed of by this common order.

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4. Facts having been referred hereinabove, it would not be necessary to repeat the same. The only point that would arise for consideration in these petitions is:

Whether order dated 14.03.2017 passed by the learned trial Judge in M.C.No.2345/2011 allowing I.A.No.XII in part deserves to be affirmed or modified and if so, to what extent?

It is the contention of Sri.S.P.Kulkarni, learned counsel appearing for petitioner that though petition is pending from 2011, progress of the case has been very tardy and on account of inordinate delay in the matter being concluded, petitioner is being unnecessarily made to pay maintenance for no fault of his and maintenance, if any, to be paid as ordered by the learned trial Judge, at the first instance, by order dated 04.07.2014 would be sufficient and respondent being in the safe hands of her father, who is a practicing advocate and there being no dearth of finances for maintenance of a daughter by her father enhancement of interim maintenance was not called for. He would also submit that maintenance awarded by trial Court at 1st

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instance was sufficient and as such, he prays for setting aside the order dated 14.03.2017 and also seeks for a direction being issued to the trial Court to dispose of M.C.No.2345/2011 within a time frame.

5. Per Contra Sri G.S.Balagangadhar, learned counsel appearing for respondent would submit that on account of maintenance awarded by the learned trial Judge, at the first instance, not being commensurate to the need, necessity and requirement of respondent-wife and her daughter had perforced her to file an application for enhancement of interim maintenance and learned trial Judge has taken note of the fact that petitioner is earning a salary of Rs.1,27,829/- per month as on December 2015 and as such has enhanced maintenance for the daughter, ignoring the claim of wife and as such he prays for allowing I.A.No.XII as prayed for and he would also pray for rejecting the petition filed by the petitioner - husband.

6. As could be seen from records, there is no dispute with regard to relationship between the parties as

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well as the fact that they have been living separately from long number of years. Records would also disclose that respondent-wife has filed petition - M.C.No.4156/2011 for restitution of conjugal rights and during the pendency of said proceedings, petitioner herein filed a petition in M.C.No.2345/2011 for dissolution of marriage solemnized on 03.11.2018. Hence, both petitions are being taken up together by the learned trial Judge.

7. While examining the claim for enhancement of maintenance, learned trial Judge has noticed that salary of petitioner for the month of June 2013 was Rs.83,718/- and for the month of May 2013 was Rs.90,565/-. There is also no dispute to the fact that as on 15.05.2013 petitioner was working as General Manager in Tata Consultancy Services which is a multi-national company and subsequently salary has been increased from time to time and as on December 2015, gross salary of petitioner was Rs.1,27,829/-. Though Sri. Balagangadhar G.S., learned counsel appearing for respondent during course of his argument would submit that present salary of the petitioner is Rs.1,40,000/- p.m.

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No material is available before this Court to accept said plea or contention. Be that as it may. Fact that remains is gross salary of the petitioner as on the date of filing of the application-I.A.No.XII for enhancement of maintenance was Rs.1,27,829/- and net salary was Rs.1,01,762/-. The deductions like insurance, PF contribution, etc., if any, will only accrue to the benefit of petitioner himself and net salary would not in any way change except to the extent of tax deduction at source and professional tax. However, it is not disputed that net salary of the petitioner as on December 2015 being Rs.1,01,762/- and petitioner being General Manager of a multi-national company would naturally be entitled to certain fringe benefits, which may not be disclosed or evidenced or reflected in the salary slip or pay slip.

8. While awarding interim maintenance, it is not only the financial capacity of the husband which would be taken into consideration, but also inability of the wife to earn or she being without any avocation as on the said date, which would be taken into consideration. That apart, social

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strata from which the parties hail, the standard of their living, the environment in which the parties have lived would also be factors which would be required to be taken into consideration while awarding maintenance. In view of the fact that petitioner is an Engineer in profession and in the year 2015 itself his status was that of a General Manager, is a factor which would show the manner in which respondent-wife would have lived. She would be entitled to seek such minimum comforts and luxuries of life which she had enjoyed and due to estrangement of relationship she cannot be asked to live in penury. When she is residing separately she would be definitely entitled to enjoy the same luxury which she had shared with the petitioner prior to their separation. Thus, taking into consideration that petitioner was earning Rs.1,01,762/- as on December 2015, this Court is of the considered view that respondent would be entitled to an enhancement of Rs.10,000/- p.m. in all Rs.25,000/- and the daughter who is now aged about 8 years would be entitled to maintenance of Rs.12,000/- per month which would be required for educational expenses

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and other incidental expenses of the child. As such, this Court is of the considered view that respondent-wife and her minor child would be entitled to a total maintenance of Rs.37,000/- i.e., Rs.25,000/- and Rs.12,000/-, respectively, from the date of filing of application i.e., 10.12.2015 till disposal of proceedings before trial Court.

9. Sri. S.P. Kulkarni, learned counsel for petitioner is justified in contending that matter M.C.No.2345/2011 and connected matter-M.C.No.4156/2011 which is pending since long number of years i.e., for the past 7 years has to be disposed of in a time bound manner and as such direction requires to be issued to the V Addl. Principal Judge, Family Court, Bengaluru, to dispose of both the petitions in a time bound.

For reasons aforesated, I proceed to pass the following:

ORDER

i) W.P.No.23752/2017 is hereby allowed in part and W.P.No.27193/2017 is disposed of.

Order dated 14.03.2017 passed by the V

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Addl. Principal Judge, Family Court, Bengaluru, in M.C.No.2345/2011 allowing I.A.No.XII is hereby modified and in substitution it is ordered that writ petitioner would be liable to pay a sum of Rs.25,000/-

per month for respondent-wife and Rs.12,000/- per month to the minor child from the date of filing of the application i.e., 10.12.2015 and continue to pay same till disposal of M.C.No.2345/2011.

ii) Arrears shall be paid by the writ petitioner expeditiously at any rate within an outer limit of six weeks from today.

iii) V Addl. Principal Judge, Family Court, Bengaluru, is hereby directed to dispose of M.C.No.2345/2011 expeditiously and at any rate within an outer limit of six months from next date of hearing and subject to both parties co-operating with the Trial Court.

iv) It is also made clear that learned V Addl. Prl.

Judge, Family Court, Bengaluru, would be at liberty to regulate the proceedings by putting parties on terms and if necessary by imposing such cost on such of those parties who seek adjournments without any

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justifiable cause to its satisfaction, if necessary.

SD/-

JUDGE SV/-